

Ashok Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 September 2019 · Writ-C No. 29727 of 2019 · **Petition disposed of; petitioner directed to apply under Clause 6.14.**

HEADNOTE

A consumer who accepts electricity dues demanded under a recovery citation and seeks only an easy instalment facility must approach the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005. If an offer to pay in instalments is made within two weeks, the Executive Engineer shall consider the request in accordance with law within fifteen days. The High Court will not itself fix instalments or decide the demand.

FACTUAL SUMMARY

Ashok Kumar challenged a recovery citation dated 12 July 2019 for electricity dues of Rs. 2,78,062 plus interest. Before the Allahabad High Court he accepted the amount demanded and submitted that he was ready and willing to pay if easy instalments were fixed. The Division Bench heard counsel for the petitioner and for the contesting respondents. The correctness of the demand and the citation were not examined on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for admitted electricity dues

HOLDING

Where the consumer accepts the electricity dues demanded under a recovery citation and seeks only that easy instalments be fixed, he may approach the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005. If an offer to pay the amount in instalments is made within two weeks, the Executive Engineer shall consider the request in accordance with law within fifteen days thereafter. The writ petition is disposed of on that direction without the Court itself granting instalments or adjudicating the demand. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO INSTALMENTS, AND ON WHAT TERMS

Left to the Executive Engineer under Clause 6.14; the Court neither granted nor refused the facility. ¶ 1

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 12.7.2019

The petitioner accepted the amount demanded; the citation was neither quashed nor upheld on merits. ¶ 1